

# Licensee's Duties to Clients and Customers at a Glance

As a licensee, you represent clients and assist customers. This means that the level of service and duties you owe clients differ from the level of service and duties you owe customers.

## Client (OLD CAR)

- Obedience
- Loyalty (undivided)
- Disclosure of material facts
- Confidentiality
- Accounting
- Reasonable skill and care

## Customer (DRHP)

- Disclosure of material facts
- Reasonable skill and care
- Honesty and fair dealing
- Prompt presentation of all written offers and counter-offers

Licensees provide expert guidance and exercise discretion as part of their services to clients. The level of service licensees may provide to customers includes ministerial acts-acts which do not require the licensee to give expert guidance or exercise discretion and which cannot be construed as violating the licensee's duty of loyalty to the client. Licensees may perform ministerial acts on behalf of both clients and customers prior to, during, and following a real estate transaction.